

Medical Courier Packet — Antwuan Johns / Anissa Valentin (NC)

Medical Courier — Operations, Hiring & Profit-Share Packet

Prepared for: Antwuan Johns, Owner — Winners Circle WC LLC, d/b/a [Company] Medical Logistics
Hiring: Anissa Valentin — Operating Manager **Venture:** LT-005 Medical Courier Dispatch · Markets: Charlotte, NC (launch) · Puerto Rico (expansion) **Governing law:** North Carolina, USA

Deal structure: Anissa is a **W-2 Operating Manager** who runs day-to-day operations and **hires the drivers** beneath her (using packet docs 01–09). Compensation = **base salary + a 70/30 profit-share bonus** (Owner 70% / Anissa 30% of *Distributable Net Profit*). Winners Circle WC LLC retains **100% ownership** — no equity is transferred.

⚠ For completion & review: fill every [bracketed] placeholder and ____ blank; set base salary, Owner's monthly management fee, and reserve %. The Employment & Profit-Share Agreement is drafted for **North Carolina** and must be reviewed by licensed NC counsel before signing. The Risk Annex at the end of that agreement is for your decisions and should be removed before execution.

EMPLOYMENT AND PROFIT-SHARE AGREEMENT

Operating Manager — Medical Courier Operations

⚠ **Attorney review required before execution.** This draft is structured for review by licensed North Carolina counsel. Restrictive covenants, incentive-wage forfeiture, and indemnification provisions are jurisdiction-sensitive. Do not sign without review.

This Employment and Profit-Share Agreement (this “**Agreement**”) is entered into as of **, 20__** (the “**Effective Date**”), by and between:

- **Winners Circle WC LLC**, a North Carolina limited liability company, d/b/a [Company] Medical Logistics, with its principal place of business at [address] (the “**Company**”); and
- **Anissa Valentin**, an individual residing at [address] (the “**Employee**”).

The Company and the Employee are referred to individually as a “**Party**” and collectively as the “**Parties**.” **Antwuan Johns** is the sole member and owner of the Company (the “**Owner**”).

Recitals

WHEREAS, the Company operates a medical courier and healthcare-logistics business; and WHEREAS, the Company desires to employ the Employee as its Operating Manager and to provide incentive compensation tied to the profitability of the business; and WHEREAS, the Employee desires to accept such employment on the terms set forth herein; and WHEREAS, the Company’s offer of employment, the incentive compensation provided under Section 5, and the Employee’s access to the Company’s Confidential Information and client relationships constitute valuable and sufficient consideration for the Employee’s covenants in Sections 9 and 10; NOW, THEREFORE, in consideration of the mutual covenants herein, the Parties agree as follows:

1. Definitions

1.1 “**Confidential Information**” means non-public information of the Company or its clients, including client lists, pricing, contracts, Business Associate Agreements, operating procedures, financial data, and Protected Health Information. 1.2 “**PHI**” means Protected Health Information as defined under HIPAA (45 C.F.R. § 160.103). 1.3 “**Distributable Net Profit**” has the meaning set forth in Section 5.2. 1.4 “**Cause**” has the meaning set forth in Section 14.2. 1.5 “**Restricted Period**” means the period of the Employee’s employment plus twenty-four (24) months following the termination of employment for any reason.

2. Position, Duties, and Reporting

2.1 **Position.** The Company employs the Employee as **Operating Manager**, reporting directly to the Owner. 2.2 **Duties.** The Employee shall direct day-to-day operations, including dispatch and routing, recruitment, training, supervision, and compliance management of drivers; client service and retention; and execution of HIPAA, OSHA, and U.S. DOT/PHMSA compliance obligations. The Employee shall manage drivers using the Company's hiring and onboarding documents. 2.3 **Standard of performance.** The Employee shall devote full business time and best efforts to the Company and shall comply with all Company policies, client requirements, and applicable law.

3. Term and At-Will Status

3.1 **At-will employment.** Employment is **at-will**. Either Party may terminate the employment relationship at any time, with or without Cause, subject to the notice and final-pay provisions of Section 14. 3.2 No provision of this Agreement shall be construed to create a guarantee of employment for any specific period.

4. Base Compensation

4.1 **Base salary.** The Company shall pay the Employee a base salary of \$_____ per [year/month], payable in accordance with the Company's regular payroll schedule, subject to applicable withholdings (W-2). The base salary is guaranteed regardless of Company profitability. 4.2 **Benefits.** The Employee shall be eligible for [benefits / "such benefits as the Company may offer"], and for workers' compensation coverage as required by North Carolina law.

5. Profit-Share Incentive Bonus

5.1 **Bonus.** In addition to base salary, the Employee shall earn an incentive bonus equal to **thirty percent (30%) of Distributable Net Profit** (the "**Profit-Share Bonus**"); the Owner retains the remaining seventy percent (70%). The Parties acknowledge that the Profit-Share Bonus constitutes "wages" under the North Carolina Wage and Hour Act (N.C. Gen. Stat. § 95-25.1 et seq.), and the calculation, conditions, proration, and forfeiture terms of this Section are disclosed in writing in advance as required by that Act. 5.2 **Distributable Net Profit** means, for each calendar quarter, Gross Revenue actually collected, less, in the following order: (a) Direct costs (driver compensation, fuel, vehicle, insurance, equipment, packaging); (b) Operating expenses (software, administrative, licensing, overhead); (c) The Owner's management fee / priority return of \$_____ per month; (d) A retained-earnings reserve of _____% for growth and contingencies. The Profit-Share Bonus applies only to the amount remaining after subsections (a)–(d). 5.3 **Payment timing.** The Profit-Share Bonus shall be calculated and paid **quarterly**, within thirty (30) days after the close of each calendar quarter. 5.4 **Eligibility period.** No Profit-Share Bonus shall accrue during the first ninety (90) days of employment (the "Introductory Period"); accrual begins [on day 91 / with the next full calendar quarter]. 5.5 **Proration and forfeiture.** Upon termination, the Profit-Share Bonus shall be **prorated** through the termination date and paid with the next applicable quarterly calculation. The Employee forfeits any unaccrued bonus for periods after termination. This proration and forfeiture provision is disclosed in advance pursuant to N.C. Gen. Stat. § 95-25.13.

6. No Equity or Ownership

6.1 This Agreement grants the Employee **no equity, membership interest, ownership, or right to acquire ownership** in the Company. The Profit-Share Bonus is incentive compensation only. 6.2 The Company, the Owner, and their successors retain **100% ownership** of the Company and all of its assets, including client contracts, Business Associate Agreements, brand, goodwill, systems, and intellectual property.

7. Authority and Decision Rights

7.1 The Owner retains final authority over pricing, execution and termination of client contracts, expenditures exceeding \$_____, and selection of the Employee's successor. 7.2 The Employee holds day-to-day operational discretion within Owner-approved budgets and standard operating procedures.

8. Financial Transparency

8.1 The Company shall provide the Employee reasonable access to the profit-and-loss statements used to calculate Distributable Net Profit, to be reviewed with the Owner each quarter.

9. Confidentiality and Protected Health Information

9.1 The Employee shall hold all Confidential Information in strict confidence, use it solely to perform her duties, and not disclose it except as required to perform those duties or by law. 9.2 The Employee shall comply with HIPAA and all client Business Associate Agreements, and shall execute the Company's HIPAA Confidentiality Agreement. Any breach involving PHI is grounds for immediate termination for Cause and may carry civil and criminal liability. 9.3 The obligations of this Section survive termination indefinitely.

10. Restrictive Covenants

10.1 **Legitimate interest.** The Employee acknowledges that, as Operating Manager, she will have access to Confidential Information and substantial relationships with the Company's clients and drivers, and that the covenants below are reasonable and necessary to protect the Company's legitimate business interests. 10.2 **Non-solicitation of clients.** During the Restricted Period, the Employee shall not solicit, divert, or service any client or prospective client with whom the Company did business, or which the Employee learned of, during her employment. 10.3 **Non-recruitment.** During the Restricted Period, the Employee shall not solicit, recruit, or hire any driver, employee, or contractor of the Company. 10.4 **Non-competition (divisible / step-down territory).** During the Restricted Period, the Employee shall not own, manage, or work for a competing medical-courier business within the following territories, which the Parties intend to be **separate, severable, and independently enforceable**, applied from broadest enforceable to narrowest: (a) the State of North Carolina; (b) the Charlotte-Concord-Gastonia metropolitan statistical area; (c) Mecklenburg County and each county contiguous thereto. If any territory in (a)–(c) is held unenforceable, the remaining territories shall remain in full force. The Parties acknowledge that North Carolina courts do not judicially revise (blue-pencil)

restrictive covenants, and they have therefore drafted these provisions as distinctly divisible. 10.5 **Reasonableness; reformation limits.** If any covenant is held unreasonable as to duration, the Parties intend the longest enforceable duration to apply to the extent permitted by North Carolina law.

11. Company Property

11.1 Upon termination, the Employee shall immediately return all Company and client property, Confidential Information, PHI, devices, credentials, and records.

12. Representations and Warranties

12.1 Each Party represents that it has full authority to enter into this Agreement and that doing so does not breach any other agreement. The Employee represents she is not subject to any restrictive covenant that would impair her performance.

13. Indemnification

13.1 The Employee shall indemnify the Company against losses arising from her gross negligence, willful misconduct, or breach of Sections 9 or 10. The Company shall indemnify the Employee for claims arising from acts performed within the lawful scope of her duties, except to the extent caused by her gross negligence or willful misconduct. This Section survives termination.

14. Termination

14.1 **By either Party.** Either Party may terminate on [fourteen (14)] days' written notice, or immediately by the Company for Cause. 14.2 **Cause** means dishonesty, breach of Sections 9 or 10, violation of HIPAA/OSHA/DOT requirements, material breach of Company policy, or conduct materially harmful to the Company. 14.3 **Final pay.** The Company shall pay all earned wages, including any accrued and prorated Profit-Share Bonus, on or before the next regular payday following termination, as required by N.C. Gen. Stat. § 95-25.7.

15. Dispute Resolution

15.1 The Parties shall first attempt to resolve any dispute through good-faith negotiation, then non-binding mediation in Mecklenburg County, North Carolina. Any unresolved dispute shall be [litigated in the state and federal courts located in Mecklenburg County, North Carolina / resolved by binding arbitration administered by the American Arbitration Association]. The prevailing Party may recover reasonable attorneys' fees to the extent permitted by law.

16. Governing Law

16.1 This Agreement is governed by the laws of the State of North Carolina, without regard to its conflict-of-laws principles.

17. Miscellaneous

17.1 **Entire agreement.** This Agreement, with the HIPAA Confidentiality Agreement, is the entire agreement between the Parties and supersedes all prior understandings. 17.2 **Amendment.** No amendment is effective unless in writing and signed by both Parties. 17.3 **Severability.** If any provision is held invalid, the remainder remains in effect, consistent with Sections 10.4–10.5. 17.4 **Waiver.** No waiver of any breach operates as a waiver of any other breach. 17.5 **Assignment.** The Company may assign this Agreement to a successor; the Employee may not assign it. 17.6 **Notices.** Notices shall be in writing and delivered to the addresses above. 17.7 **Counterparts.** This Agreement may be executed in counterparts, including electronically.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

WINNERS CIRCLE WC LLC d/b/a [Company] Medical Logistics

By: _____ Date: _____ Name: **Antwuan Johns** Title: Owner / Member

EMPLOYEE

_____ Date: _____ **Anissa Valentin**, Operating Manager

EXHIBIT A — Distributable Net Profit (illustrative)

Line	Example
Gross Revenue collected (quarter)	\$[X]
– Direct costs	\$[]
– Operating expenses	[] – Owner's management fee (____/mo × 3)
– Retained-earnings reserve (____%)	[] ** = Distributable Net Profit * * [] **
Owner 70%	[] * * Employee 30 [] **

ANNEX — Panel Risk & Enforceability Notes (not part of the executed contract)

Reviewed as: Senior Corporate Attorney · COO · Head of HR · Enterprise Risk Officer · Executive Recruiter. For your decision-making; remove before signing.

#	Issue	Risk	Action
1	NC no blue-pencil rule	Court will void an overbroad covenant entirely rather than narrow it	Divisible step-down territory used (§10.4); have counsel confirm

#	Issue	Risk	Action
2	Profit-share = wages (NCWHA)	Forfeiture/proration unenforceable if not disclosed in advance	Disclosed in §5.5; keep signed copy on file
3	Consideration for covenants	If signed after start date, covenants may fail for lack of new consideration	Recitals tie covenants to the job offer + incentive; sign at or before start
4	“Distributable Net Profit” disputes	Vague expense categories invite conflict	Define expense categories precisely with counsel/CPA; consider a capped Owner fee
5	Misclassification	W-2 chosen (correct given control); never run this role as 1099	Maintain W-4/I-9, payroll, workers’ comp
6	Non-compete vs non-solicit	Non-solicit (§10.2–10.3) is far more enforceable than non-compete (§10.4) in NC	If counsel is uneasy, rely primarily on non-solicit
7	Indemnification of employer by employee	Limited enforceability; courts disfavor broad employee indemnity	Keep narrow (gross negligence/willful/§9–10 breach only) — already scoped
8	Arbitration vs court	Choose one in §15 before signing	Decide with counsel; arbitration = privacy/speed, court = appeal rights

Client Outreach Email — Labs / Dialysis / Pharmacies

Replace [bracketed] placeholders. Send from a business domain email, not gmail, for deliverability.

Subject: Reliable HIPAA-compliant medical courier — Charlotte specimen & STAT runs

Hi [Name],

I run [Company], a Charlotte-based medical courier service handling **specimen transport, STAT runs, and cold-chain delivery** for labs, dialysis centers, and pharmacies.

We're fully set up for healthcare logistics:

- **HIPAA-compliant** chain-of-custody, drivers trained & BAA-ready — [link: one-page compliance sheet]
- **OSHA bloodborne pathogen + DOT UN3373** packaging trained — [link: credentials/insurance proof PDF]
- **Live GPS tracking + temperature-logged** proof of delivery — [link: tracking/POD sample]

We're onboarding a few routed and STAT clients this month. Could I send our rate sheet and set up a 15-minute call?

Book a time directly: [link: Calendly URL] More on us: [link: website]

Best, [Your name] · [phone] · [email]

URLs this email carries

1. One-page compliance/capability sheet → 02-ONE-PAGE-COMPLIANCE-SHEET.md (host as PDF or web page)
2. Credentials + insurance proof PDF
3. Tracking/POD demo or sample screenshot
4. **Booking link (Calendly)** — the primary CTA
5. Website

Follow-up cadence

- Day 0: send
- Day 3: short bump ("floating this back up — happy to send the rate sheet")

- Day 7: value add (“we just opened an early-AM specimen route in [area]”)
- Day 14: break-up (“I’ll close the loop — reach out anytime”)

Targets (Charlotte)

Independent/reference labs · dialysis centers (Charlotte has high volume) · oncology & surgery centers · independent + compounding pharmacies · nursing homes / home health · hospital systems (Atrium, Novant — longer cycle).

[Company] Medical Logistics — Capability & Compliance Sheet

One-pager. Export to PDF or host as a web page; link it from the client outreach email.

Who we are

Charlotte-based medical courier and healthcare logistics service. We move specimens, pharmaceuticals, and biologics safely, on time, and with full chain-of-custody documentation.

Services

Service	Description	Turnaround
STAT / on-demand	Urgent point-to-point	1–2 hrs
Routed / recurring	Scheduled daily lab & pharmacy runs	Daily, fixed window
Specimen transport	Blood, tissue, lab samples (UN3373)	Per route
Cold-chain	Vaccines, biologics (2–8°C / frozen)	Temp-logged
Pharmacy & DME	Rx and equipment delivery	Same-day

Compliance & safety

-  **HIPAA-compliant** handling; **Business Associate Agreement** signed with every client
-  Drivers trained: **HIPAA awareness**, **OSHA bloodborne pathogens (29 CFR 1910.1030)**, **DOT/PHMSA UN3373** packaging & spill response
-  **Chain-of-custody** documentation on every pickup/delivery
-  **Commercial auto + cargo/cold-chain liability** insured (\$[X]M)
-  Background-checked, clean-MVR drivers
-  **Temperature-logged** cold-chain with delivery records

Technology

- Live GPS tracking · electronic proof-of-delivery (signature + photo + timestamp) · temperature data logs available on request.

Why us

Reliability is everything in specimen transport. We run documented SOPs, not gig drivers — your samples arrive intact, in range, on schedule, with a paper trail your auditors will accept.

Contact: [Name] · [phone] · [email] · [website] [Company] operates under Winners Circle WC LLC.

[Company] Medical Logistics — Rate Sheet

Client-facing. Fill real numbers after you price your local market. Ranges below are typical US metro starting points — confirm against Charlotte / PR competitors before quoting.

Routed / recurring (contract pricing — your recurring revenue)

Model	Typical rate	Notes
Per stop	\$12–30 / stop	Volume discounts at 20+ stops/day
Daily route (flat)	\$150–400 / route / day	Fixed pickups, fixed window
Monthly contract	Negotiated	Best for predictable lab/pharmacy volume

STAT / on-demand (premium)

Tier	Typical rate
Standard STAT (≤2 hr)	\$25–60 / run
Rush (≤1 hr)	\$45–90 / run
After-hours / weekend / holiday	+25–50% surcharge

Distance-based (alt model)

- Base fee \$[X] + \$1.50–3.00 / mile.

Surcharges

- Cold-chain / temperature-controlled: +\$[X] or % per run
- Biohazard / specialized packaging: +\$[X]
- Wait time beyond [15] min: \$[X] / 15 min
- Fuel surcharge: indexed to local fuel price

Terms

- Billing: [weekly / Net 15 / Net 30]
- Minimum: [route minimum or monthly minimum]
- BAA executed before first pickup.

Quote prepared by: [Name] · [phone] · [email] Rates valid 30 days from issue.

Driver Recruitment Email

Sent to candidates who responded to the job post. One CTA: the screening form.

Subject: Medical Courier Driver — Charlotte | Paid training, weekly pay, daily routes

Hi [Name],

Thanks for your interest in the Medical Courier Driver role with [Company]. We run daily specimen and pharmacy routes across Charlotte — reliable hours, weekly pay, paid compliance training.

Requirements (please confirm you meet these before applying): - Valid license, 21+, 2+ yrs driving, clean MVR - Reliable insured vehicle + smartphone - Able to pass a background check - Available early AM (route start ~6–7am)

Next step — complete the 2-minute screening form: [link: Jotform/Google Form]

Qualified applicants get a 30-minute call this week.

[Your name] · [Company] · [phone]

URLs this email carries

1. **Screening/application form** — the single CTA (see `HIRING/02-SCREENING-FORM.md` for questions)
2. (optional) Company/about page

Job Post — Medical Courier / Route Driver

Post to Indeed, Facebook local driver groups, referrals. Adjust city for Charlotte or PR.

Title: Medical Courier / Route Driver — [City] | Daily Routes, Weekly Pay

Company: [Company] Medical Logistics

We deliver lab specimens, pharmaceuticals, and medical supplies for healthcare clients across [City]. We're hiring reliable drivers for daily routes and on-call STAT runs.

What you'll do

- Pick up and deliver medical specimens, lab samples, and pharmacy items on a scheduled route
- Follow strict handling, temperature, and chain-of-custody procedures
- Capture proof of delivery (signature/photo) via our app
- Maintain professionalism at hospitals, labs, and pharmacies

What we offer

- Reliable daily routes + weekly pay
- **Paid compliance training** (HIPAA, bloodborne pathogen, packaging)
- Steady schedule with STAT-run upside

Requirements (non-negotiable)

- Valid driver's license, **21+**, 2+ years driving experience
- **Clean MVR** (no DUI/reckless in last 3 years)
- Reliable, insured vehicle (or willing to operate a provided vehicle)
- Smartphone
- Able to pass a **background check**
- Available early morning (routes start ~6–7am)

Nice to have

- Prior courier / delivery / medical transport experience
- Comfort handling biological specimens

To apply: complete our 2-minute screening form → [link: screening form]

[Company] is an equal opportunity employer.

Screening Form — Driver Knockout Questions

Build in Jotform or Google Forms. Auto-reject on any disqualifying answer. Goal: 2 minutes, filters before you spend time on a call.

Questions

1. **Full name** — short text
2. **Phone + email** — short text
3. **Are you 21 or older?** — Yes / No → *No = reject*
4. **Do you have a valid driver's license?** — Yes / No → *No = reject*
5. **Years of driving experience** — 0–1 / 2–4 / 5+ → *0–1 = reject*
6. **In the last 3 years, any DUI, reckless driving, or license suspension?** — Yes / No → Yes = *reject*
7. **Do you have a reliable, insured vehicle?** — Yes / No / Willing to drive a provided vehicle
8. **Do you have a smartphone?** — Yes / No → *No = reject*
9. **Can you pass a background check?** — Yes / No → *No = reject*
10. **Are you available early mornings (route start ~6–7am)?** — Yes / No / Some days
11. **Comfortable transporting biological/medical specimens following strict procedures?** — Yes / No → *No = reject*
12. **Earliest start date** — date (YYYY-MM-DD)
13. **(Optional) Prior courier or medical-transport experience?** — long text

Auto-routing

- Any reject answer → polite decline auto-email.
- All pass → tag “Qualified,” send 30-min interview booking link.

Notes

- Keep it to one screen on mobile.
- Pipe submissions to a spreadsheet / CRM for tracking.

Interview Scorecard — 30-Minute Driver Call

Candidate: _____ Date: _____ Interviewer: _____

Score each 1–5 (1 = poor, 5 = excellent). Reliability is the #1 predictor of success in courier ops.

Scoring

Area	Question / probe	Score (1–5)
Reliability	Attendance history in past jobs? Ever miss a shift — what happened?	___
Compliance mindset	Comfort following strict, documented procedures every single run?	___
Specimen handling	Comfort transporting blood/ biological samples and biohazard?	___
Professionalism	How do they present? Would you trust them inside a hospital/lab?	___
Problem solving	<i>Scenario: a specimen spills in your trunk mid-route — what do you do?</i>	___
Availability fit	Matches the route window (early AM, days needed)?	___
Communication	Clear, responsive, asks good questions?	___

Total: ___ / 35

Scenario answer key (Q: spill mid-route)

Good answer mentions: stop safely → don't touch with bare hands → use spill kit / PPE → contain & disinfect → document the incident → notify dispatch → don't deliver compromised specimen without guidance.

Decision

☐

Advance to offer (28+ and no red flags)

☐

Hold / second look

☐

Reject

Red flags (auto-hold/reject): vague on attendance, dismissive of procedures, no reliable transport, can't commit to schedule.

Notes: _____

Driver Agreement — 1099 & W-2 Versions

⚠ Have a licensed attorney review before use. Misclassifying a W-2 worker as 1099 is a real audit/liability risk in medical courier (you must control HIPAA/OSHA procedures — the IRS “control test” often points to W-2). Use 1099 to test, convert to W-2 as you stabilize.

VERSION A — 1099 Independent Contractor Agreement

This Independent Contractor Agreement (“Agreement”) is between **[Company] / Winners Circle WC LLC** (“Company”) and _____ (“Contractor”), effective _____.

1. **Engagement.** Contractor provides courier/delivery services as an independent contractor, not an employee. Contractor controls the manner and means of performance, subject to client and regulatory requirements.
2. **Services.** Pickup and delivery of medical specimens, pharmaceuticals, and supplies per assigned routes/runs, following all chain-of-custody, temperature, HIPAA, OSHA, and DOT requirements.
3. **Compensation.** \$_____ per [route / stop / mile]. Invoiced [weekly]. Paid via [direct deposit] within [7] days. Contractor responsible for all taxes (issued IRS Form 1099-NEC).
4. **Vehicle & expenses.** Contractor provides own insured vehicle and bears own operating expenses unless otherwise agreed.
5. **Compliance.** Contractor must complete required HIPAA, bloodborne pathogen, and packaging training and follow all procedures. Contractor signs the HIPAA Confidentiality Agreement (separate doc).
6. **Confidentiality / PHI.** Contractor will not disclose any protected health information; breach is grounds for immediate termination and potential liability.
7. **Insurance.** Contractor maintains valid auto insurance; provides proof to Company.
8. **Term & termination.** At-will; either party may terminate with [3] days’ notice (immediate for compliance breach).
9. **Independent status.** No benefits, no withholding; Contractor not eligible for unemployment/workers’ comp through Company.
10. **Governing law.** State/territory of [NC / PR].

Contractor: _____ **Date:** _____ **Company:** _____ **Date:** _____

VERSION B — W-2 Employment Offer & Terms

[Company] / Winners Circle WC LLC offers _____ the position of **Medical Courier Driver**, effective _____.

1. **Position & duties.** Pickup/delivery of medical specimens and supplies on assigned routes per Company SOPs.
2. **Status.** Full-time / part-time **W-2 employee**, at-will.
3. **Compensation.** \$_____ per [hour / route], paid [weekly] via direct deposit; applicable taxes withheld (W-2). Overtime per FLSA where applicable.
4. **Schedule.** [Days / hours]; routes generally start ~6–7am.
5. **Benefits.** [List or “none at this time”]. Eligible for workers’ compensation coverage.
6. **Vehicle.** [Company-provided / personal vehicle with mileage reimbursement].
7. **Compliance & training.** Must complete and maintain HIPAA, bloodborne pathogen, and packaging training; follow all chain-of-custody, temperature, and safety procedures. Signs HIPAA Confidentiality Agreement.
8. **Confidentiality / PHI.** No disclosure of protected health information; breach is grounds for immediate termination.
9. **Conditions of employment.** Satisfactory background check, clean MVR, valid license, eligibility to work (I-9), completed W-4.
10. **Governing law.** State/territory of [NC / PR].

Employee: _____ **Date:** _____ **Company:** _____ **Date:** _____

Compliance Onboarding Checklist

Driver: _____ **Start date:** _____ **Status:** ☐ 1099 ☐ W-2

The medical-specific gate. No driver goes on a route until every box is checked and filed. Clients WILL audit this.

Documents collected & signed

☐

Signed driver agreement (1099 or W-2)

☐

Offer letter signed

☐

Background check authorization signed → result: ☐ Pass ☐ Fail

☐

MVR pull authorization signed → result: ☐ Clean ☐ Issues

☐

Driver added to **commercial auto insurance** (proof on file)

☐

Proof of personal auto insurance (if using own vehicle)

☐

Copy of valid driver's license

☐

Tax docs: ☐ W-9 (1099) — or — ☐ W-4 + I-9 (W-2)

☐

Direct deposit form

☐

HIPAA Confidentiality Agreement signed (see doc 06)

☐

Emergency contact form

Training completed (see doc 07)

☐

HIPAA awareness — signed acknowledgment, dated

☐

OSHA bloodborne pathogen — signed acknowledgment, dated

☐

UN3373 packaging + spill response — signed acknowledgment, dated

☐

Chain-of-custody + POD app walkthrough

Equipment issued

☐

Insulated/temperature containers

☐

Temperature logger

☐

Spill kit + PPE

☐

Chain-of-custody forms / app login

☐

ID badge / company credential

Final

☐

Ride-along competency sign-off complete (doc 08)

☐

All documents filed in driver file (doc 09)

Onboarding completed by: _____ **Date:** _____

HIPAA Confidentiality Agreement — Driver

Have an attorney confirm this aligns with your clients' Business Associate Agreements (BAAs).
Every driver signs before handling any PHI.

Driver name: _____ **Company:** [Company] / Winners Circle WC LLC

As a medical courier handling protected health information (PHI) in the course of transporting specimens, records, and pharmaceuticals, I acknowledge and agree:

1. **Definition.** "PHI" includes any individually identifiable health information — patient names, specimen labels, requisition forms, lab orders, and any documents or containers I transport.
2. **Confidentiality.** I will keep all PHI strictly confidential. I will not read, copy, photograph, share, or discuss PHI with anyone except as required to perform my delivery duties.
3. **Minimum necessary.** I will access only the information necessary to complete pickups and deliveries.
4. **Safeguards.** I will keep specimens and documents secured in the vehicle, never left unattended in public view, and protected from loss or theft.
5. **No personal use.** I will never use PHI for any personal purpose or disclose it for any reason unrelated to my duties.
6. **Incident reporting.** I will immediately report any actual or suspected breach, loss, theft, or unauthorized disclosure of PHI to my supervisor.
7. **Return of materials.** Upon end of engagement, I will return all PHI, devices, badges, and company materials.
8. **Consequences.** I understand that violating this agreement or HIPAA may result in immediate termination and civil or criminal penalties under federal law.
9. **Survival.** My confidentiality obligations continue after my engagement ends.

I have read, understand, and agree to the above.

Driver signature: _____ **Date:** _____ **Witness / Company rep:** _____

Date: _____

Training Acknowledgment Forms

Three required trainings. Each driver signs and dates each section. This is your liability shield — keep in the driver file. Use a recognized training provider or documented internal curriculum.

Driver: _____

1. HIPAA Awareness Training

Topics covered: what PHI is, minimum-necessary rule, safeguarding specimens/documents, breach reporting, penalties.

I confirm I completed HIPAA awareness training and understand my obligations to protect PHI.

Signature: _____ **Date:** _____ **Trainer:** _____

2. OSHA Bloodborne Pathogen Training (29 CFR 1910.1030)

Topics covered: exposure risks, universal precautions, PPE, handling specimens & sharps, spill cleanup, exposure incident response, decontamination.

I confirm I completed bloodborne pathogen training and understand exposure-control procedures.

Signature: _____ **Date:** _____ **Trainer:** _____

3. DOT/PHMSA UN3373 Packaging & Spill Response

Topics covered: Category B infectious substance packaging (UN3373), triple-packaging requirements, labeling, temperature handling, spill kit use, incident documentation.

I confirm I completed packaging and spill-response training and will follow all requirements.

Signature: _____ **Date:** _____ **Trainer:** _____

4. Chain-of-Custody & POD App

Topics covered: pickup verification, custody documentation, temperature logging, proof-of-delivery capture, recipient verification.

I confirm I was trained on chain-of-custody procedures and the delivery app.

Signature: _____ **Date:** _____ **Trainer:** _____

Refresh annually. Retraining dates: _____

Route Competency Sign-Off

Completed after the driver rides 2 full routes with you or a lead driver. Driver does not go solo until signed.

Driver: _____ Route(s): _____ Evaluator: _____

Ride-along verification (check when demonstrated correctly)

Run 1 — observed

- ☐ Verified pickup order and temperature requirement
- ☐ Inspected packaging / leak check before accepting
- ☐ Logged pickup time + temperature + chain-of-custody signature
- ☐ Maintained temperature range during transport
- ☐ Confirmed recipient identity at drop-off
- ☐ Captured delivery signature/photo + timestamp
- ☐ Professional conduct at facilities

Run 2 — performed (minimal coaching)

- ☐ Completed full route correctly and on time
- ☐ Handled an exception/question appropriately
- ☐ Used POD app independently
- ☐ Knows spill-response procedure (verbal check)

Competency decision

- ☐ **Cleared for solo routes**

☐

Needs additional ride-along — reason: _____

Equipment confirmed issued: ☐ containers ☐ temp logger ☐ spill kit ☐ COC forms/app ☐ badge

Evaluator signature: _____ **Date:** _____ **Driver signature:** _____ **Date:** _____

Driver File Index

One folder per driver. This is what you hand an auditing client. **No complete file = no driver on the route.** Keep digital + signed copies.

Driver: _____ Hire date: _____ Status: ☐ 1099 ☐ W-2 ☐ Active ☐ Inactive

Contents checklist

#	Document	On file?	Date	Expires/Renew
1	Signed driver agreement (1099/W-2)	☐		
2	Offer letter	☐		
3	Driver's license copy	☐		(license expiry)
4	Background check result	☐		re-run annually
5	MVR result	☐		re-run annually
6	Auto insurance proof	☐		(policy expiry)
7	Commercial insurance add confirmation	☐		
8	Tax docs (W-9 or W-4+I-9)	☐		
9	Direct deposit form	☐		
10	HIPAA Confidentiality Agreement	☐		
11	HIPAA training acknowledgment	☐		annual refresh
12	OSHA bloodborne training acknowledgment	☐		annual refresh
13	UN3373 packaging training acknowledgment	☐		annual refresh
14	Chain-of-custody / POD training	☐		
15	Route competency sign-off	☐		
16	Equipment issued log	☐		
17	Emergency contact form	☐		

Status log

Date	Event (hired / trained / cleared / incident / offboarded)	Notes

File complete & audit-ready: ☐ Yes **Verified by:** _____ **Date:** _____

Puerto Rico Expansion — Medical Courier

Short answer: yes, it works in Puerto Rico. PR is a US territory, so the entire federal compliance backbone (HIPAA, OSHA, DOT/PHMSA) applies exactly as in NC. You swap the *local* registration and licensing layer, account for Spanish-language operations, and you're in a market with unusually strong demand drivers.

What stays the same (federal — identical to NC)

- **HIPAA** + Business Associate Agreements with every client — federal law, applies in PR
- **OSHA bloodborne pathogens (29 CFR 1910.1030)** — applies; PR operates under federal OSHA via **PR OSHA (PR Dept. of Labor / Depto. del Trabajo)**
- **DOT/PHMSA UN3373** packaging for infectious substances — federal, applies
- Commercial auto + cargo/cold-chain liability insurance
- The entire driver hiring + onboarding packet in **HIRING/** (translate to Spanish)

What changes (local layer)

Item	NC	Puerto Rico
Entity registration	NC Secretary of State	PR Departamento de Estado (Registro de Corporaciones)
Tax / merchant reg	NC Dept of Revenue	PR Hacienda — Merchant's Registration Certificate (Certificado de Registro de Comerciante) + IVU sales tax
DBA / business name	Mecklenburg Register of Deeds	PR Departamento de Estado
Driver records (MVR)	NCDOT DMV	PR DTOP / DISCO (Departamento de Transportación y Obras Públicas)
Insurance regulator	NC Dept of Insurance	Oficina del Comisionado de Seguros de PR (OCS)
Language	English	Spanish primary — all driver docs, training, client materials

Why PR is actually a strong market

- **High diabetes & chronic-disease rates** → heavy **dialysis** and lab-draw volume (recurring routed revenue, your best contracts)
- Dense metro (San Juan, Bayamón, Carolina, Caguas) = short routes, more stops/hour
- Aging population + home health demand

- **Federal Opportunity Zone / Act 60 tax incentives** may apply to a PR-domiciled operation — worth a CPA conversation
- Hurricane-resilience logistics is a real need (cold-chain + backup planning is a differentiator)

Local URLs

- PR Dept. of State (business registration): <https://estado.pr.gov>
- PR Hacienda (treasury / merchant registration): <https://hacienda.pr.gov>
- PR Dept. of Labor / PR OSHA: <https://www.trabajo.pr.gov>
- PR DTOP (transportation): <https://www.dtop.pr.gov>
- PR Office of the Insurance Commissioner: <https://ocs.pr.gov>

Setup deltas vs NC (the only extra work)

1. Register entity with PR Depto. de Estado + get Hacienda Merchant Certificate
2. Translate all hiring/training/client docs to **Spanish**
3. Source PR-based commercial auto + cargo insurance via an OCS-licensed agent
4. Confirm PR OSHA training provider for bloodborne pathogen certification
5. Everything else in this packet ports directly

Strategic note

Run **Charlotte first** to prove the SOP and build the document set, then **clone into PR** — the compliance umbrella and all templates are reusable. PR is a parallel market, not a different business. Consider a PR-domiciled entity for Act 60 if you scale meaningfully there (get a PR CPA/attorney).

Not legal/tax advice — confirm PR entity, tax, and licensing specifics with a PR-licensed attorney and CPA before launch.